

After Recording Return To:

W&B Development, Ltd.  
3000 Illinois Ave., Ste. 100  
Killeen TX 76543

Doc# 00021294

**SECOND AMENDMENT, RATIFICATION, AND NOTICE OF ADDITION OF LAND TO  
DECLARATION OF COVENANTS, CONDITIONS AND RESTRICTIONS**

Yowell Ranch

THIS SECOND AMENDMENT AND NOTICE OF ADDITION OF LAND TO DECLARATION OF COVENANTS, CONDITIONS, AND RESTRICTIONS ("Amendment") is made as of the Effective Date shown below by WBW Development, Ltd., a Texas limited partnership.

**RECITALS**

A. On or about January 15, 2010, Declarant made that certain Declaration of Covenants, Conditions and Restrictions of record at Instrument #2010-00002251 in the Official Public Records of Bell County, Texas ("Declaration.")

B. On or about February 26, 2007, Declarant made that certain First Amendment to Declaration of Covenants, Conditions and Restrictions of record at Instrument #2011-000002528 in the Official Public Records of Bell County, Texas.

C. Declarant continues to own Lots in the Subdivision.

D. Declarant now desires to (1) amend the Declaration as provided herein to add Phase Three of the Subdivision in order to make same subject to the Declaration in its entirety; (2) enable Declarant's affiliated retail companies to exercise the authority of Declarant; and (3) impose additional restrictions on Lots along and adjacent to Shimla Drive in order to assure the orderly and uniform development of the Subdivision as a residential subdivision of good and desirable character.

E. The principal owners of Declarant have formed two new Texas limited liability companies, WBW Development Management III, LLC and W&B Development III, LLC, to assist in the development and sale of various Lots in the Subdivision. For convenience of administration, these three entities wish to associate for the purpose of acting as a single Declarant under the Declaration.

NOW, THEREFORE, pursuant to the authority reserved to Declarant under Article 10.1 and Article 12.2 of the Declaration, Declarant hereby makes the following supplemental amendments to the Declaration:

1. Capitalized terms used herein shall have the meaning ascribed to them in the Declaration unless the context clearly indicates otherwise.

2. Exhibits "A" through "E" to the Declaration are amended to read as reflected in Exhibits "A" through "E" attached to this instrument.

3. The definition of the term "Declarant" in Section 1.14 and elsewhere in the Declaration is amended as follows:

"Declarant" shall mean an informal association comprised of WBW Development, Ltd., WBW Development Management III, LLC, and W&B Development III, LLC (each an "Associate"), and their respective duly authorized representatives, or their respective successors or assigns as provided in Section 12.12; provided that any assignment of the rights of Declarant must be expressly set forth in writing, and the mere conveyance of a portion of the Property without written assignment of the rights of Declarant shall not be sufficient to constitute an assignment of the rights of Declarant hereunder. Each Associate shall have the full authority to act on behalf of the Declarant hereunder, and to exercise the voting rights and other powers and privileges of all Associates without the joinder of any other Associate, thereby binding the Declarant and every Associate.

4. The Declaration is hereby supplemented by the addition of a new Section 7.33, to read as follows:

**7.33. Shimla Drive.** Notwithstanding any contrary provision herein:

a. **Fences.** All perimeter fences along Shimla Drive shall be placed within the five foot (5') landscape easement, but not within three feet (3') of the Shimla right-of-way. All perimeter fences along Shimla Drive shall have masonry columns at the turn points and at locations where the fence crosses a property line.

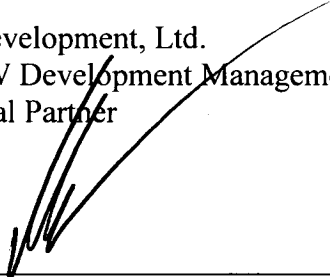
b. **Screening.** Any and all houses adjacent to Shimla Drive must not have utility boxes, hardware, air-conditioning units, or any other similar items visible from Shimla Drive.

5. In the event of an inconsistency between this Amendment and the terms of the Declaration, this Amendment shall govern. Except as expressly provided herein, the Declaration has not been amended or modified, and all terms, covenants, conditions and restrictions of the Declaration shall continue in full force and effect with respect to the entire Property. Hereafter, all references to the Declaration shall be deemed to be references to the Declaration as amended and modified by this instrument. The Declaration as herein amended is hereby ratified and approved.

6. This Amendment shall be EFFECTIVE from and after the date of the notary acknowledgement shown below.

WBW Development, Ltd.

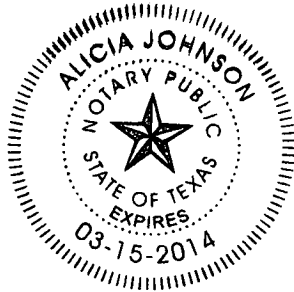
By: WBW Development Management, LLC,  
Its General Partner

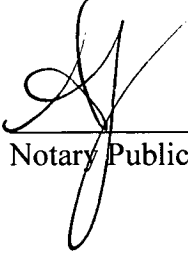
By:   
Bruce Whitis, Manager / President

STATE OF TEXAS

COUNTY OF BELL

This instrument was acknowledged before me on the 23 day of June, 2011, by Bruce Whitis, Manager and President of WBW Development Management, LLC, a Texas limited liability company, in its capacity as General Partner of WBW Development, Ltd., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.



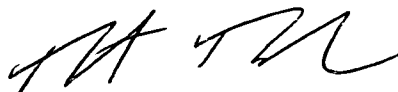
  
Notary Public, State of Texas

*Pulte Consent*

The undersigned acknowledges that the foregoing instrument does not modify the Declaration in a manner that materially and adversely impacts the Lots or Property owned by the undersigned or subject to a valid contract of purchase in favor of the undersigned, and consents to the terms and provisions of such instrument.

Pulte Homes of Texas, L.P., a Texas limited partnership

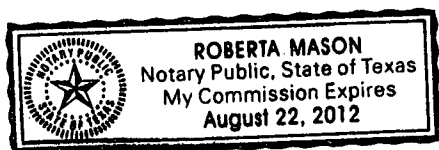
By: Pulte Nevada, LLC, a Delaware limited liability company, its General Partner

By:   
Brent Baker, Vice President of Land

STATE OF TEXAS

COUNTY OF TRAVIS

This instrument was acknowledged before me on the 31<sup>st</sup> day of May, 2011, by Brent Baker, Vice President of Land of Pulte Nevada, LLC, a Delaware limited liability company, in its capacity as General Partner of Pulte Homes of Texas, L.P., a Texas limited partnership, on behalf of said limited partnership, and as the act and deed thereof.



  
Notary Public, State of Texas

*D.R. Horton Consent*

The undersigned, being the owner of certain Lots in the Subdivision affected by the foregoing Amendment, hereby for itself, its successors and assigns, consents to the terms and provisions of such instrument, and ratifies all prior amendments to the Original Declaration as of their respective effective dates.

Continental Homes of Texas, L.P., a Texas  
limited partnership, doing business as D.R.  
Horton Homes  
By: CHTEX of Texas, Inc., a Texas  
corporation, its General Partner

By: 

Name: TERRY STANLY

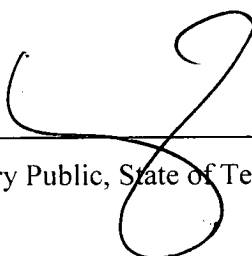
Title: DIVISION MGR.

STATE OF TEXAS

COUNTY OF BELL

This instrument was acknowledged before me on the 31<sup>st</sup> day of May, 2011, by \_\_\_\_\_, \_\_\_\_\_ of CHTEX of Texas, Inc., a Texas corporation, in its capacity as General Partner of Continental Homes of Texas, L.P., a Texas limited partnership, doing business as D.R. Horton Homes, on behalf of said limited partnership, and as the act and deed thereof.



  
\_\_\_\_\_  
Notary Public, State of Texas

**EXHIBIT "A"****The Property**

Lots 1 through 26 and Tracts 4, 5, and 7, Block 1; Lots 1 through 15 and Tract 6, Block 2; Lots 1 through 97 and Tracts 1 and 3, Block 3; Lots 1 through 226, Block 4; and Lots 1 through 16 and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Lots 1 through 27 and Tract 1, Block 1; Lots 1 through 113 and Tract 2, Block 2; Lots 1 through 117, Block 3; Lots 1 through 24, Block 4; and Lots 1 through 26 and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Lots 1 through 166 and Tract A and D, Block 1; Lots 1 through 15 and Tract B, Block 2; Lots 1 through 30, Block 3; Lots 1 through 24, Block 4; Lots 1 through 39 and Tract C, Block 5; Lots 1 through 28, Block 6; and Lots 1 through 34, Block 7 of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

**EXHIBIT "B"****Common Areas**

Tracts 4 and 5, Block 1; Tract 6, Block 2; Tracts 1 and 3, Block 3; and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 1, Block 1; Tract 2, Block 2; and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Tract D, Block 1; and Tract C, Block 5; of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

**EXHIBIT "C"****SUBDIVISION FENCING EASEMENT**

An easement for subdivision fencing for the benefit of the Declarant and the Association, (i) adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 of Block 1, Lot 1 and Lots 37 through 51 of Block 3, and Lots 1 through 8 of Block 5; and (ii) adjacent to Stagecoach Road, being five feet (5') in width, and located within and along the northerly boundary lines of Lots 22 through 26 of Block 1, and Lot 1 of Block 2 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, adjacent to Featherline Road, being five feet (5') in width, and located within and along the westerly boundary lines of Lot 1 and Lots 95 through 113, Block 2; and Lot 1, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

An easement for subdivision fencing for the benefit of the Declarant and the Association, (i) adjacent to Shimla Drive, being five feet (5') in width, and located within and along the westerly lot lines of Lot 15, Block 2; Lots 15 and 30, Block 3; Lots 12 and 24, Block 4; Lots 15 and 16, Block 6; Lots 1, 20 and 21, Block 7; and (ii) adjacent to Shimla Drive, being five feet (5') in width, and located within and along the easterly lot lines of Lots 1, 33, 34, 66, 67, 100, 101, 133, 134, and 166, Block 1 of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.

**EXHIBIT "D"****Entry Signs**

Tracts 4 and 5, Block 1; Tract 6, Block 2; Tract 3, Block 3; and Tract 2, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 2, Block 2; and Tract 3, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

**EXHIBIT "E"****Open Space Area**

Tract 1, Block 3 of the FINAL PLAT OF YOWELL RANCH PHASE ONE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 276-B and C, Plat Records of Bell County, Texas.

Tract 1, Block 1 of the FINAL PLAT OF YOWELL RANCH PHASE TWO, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 306 C and D, Plat Records of Bell County, Texas.

Tract D, Block 1; and Tract C, Block 5 of the FINAL PLAT OF YOWELL RANCH PHASE THREE, an addition to the City of Killeen, Bell County, Texas, according to the map or plat of record in Cabinet D, Slide 326-D and 327-A, Plat Records of Bell County, Texas.



70 2011 00021294

**Bell County  
Shelley Coston  
County Clerk  
Belton, Texas 76513**

**Instrument Number: 2011-00021294**

**Recorded On: June 24, 2011**

**As  
Recordings**

**Parties: WBW DEVELOPMENT LTD**

**Billable Pages: 10**

**To YOWELL RANCH**

**Number of Pages: 11**

**Comment:**

( Parties listed above are for Clerks reference only )

**\*\* Examined and Charged as Follows: \*\***

|                         |              |
|-------------------------|--------------|
| Recordings              | 47.00        |
| <b>Total Recording:</b> | <b>47.00</b> |

**\*\*\*\*\* DO NOT REMOVE. THIS PAGE IS PART OF THE INSTRUMENT \*\*\*\*\***

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY  
because of color or race is invalid and unenforceable under federal law.

**File Information:**

Document Number: 2011-00021294  
Receipt Number: 108661  
Recorded Date/Time: June 24, 2011 12:16:07P

**Record and Return To:**

W&B DEVELOPMENT INC  
3000 ILLINOIS AVE, STE 100  
KILLEEN TX 76543

User / Station: G Gomez - Cash Station 1



I hereby certify that this instrument was filed on the date and time stamped hereon and was duly recorded in the Real Property  
Records in Bell County, Texas

Shelley Coston  
Bell County Clerk